

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

June 18, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Barrett v. Anduril Industries, Inc. 2024-01374656	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$775,000 class action and PAGA settlement. The court has the following questions and comments: 1. In the February 19, 2026 order (ROA 89), the court stated that plaintiff had filed an overlong brief without obtaining leave of court. Plaintiff states that California Rules of Court

		3.769 and 3.764 authorize a 20-page brief in support of a preliminary approval motion. Rule 3.769 does not address page limits and Rule 3.764 does not address motions for preliminary approval of class action settlements. 2. The Supplemental Perlman Declaration (ROA 102) is not signed. <u>As to the settlement:</u> 3. In the February 19, 2026 order (ROA 89), the court stated that plaintiff should state his total compensation anticipated to be received (including for any individual claims and excluding any enhancement award). Does plaintiff anticipate receiving any compensation for any individual claims? 4. The word "and" in paragraph 1.4 of the amendment should be replaced with "to." 5. The parties amended the settlement agreement to calculate PAGA payments based on pay periods, but paragraph 6.3 of the amendment still states that PAGA payments are calculated based on "workweeks." 6. Paragraph 8.4 of the amendment appears to be missing a word before subsection "(c)," and there is a stray " ." at the end of that sentence. 7. In the February 19, 2026 order, the court stated that plaintiff seeks an enhancement award of \$7,500, and that the settlement agreement states that the enhancement award is in part in exchange for plaintiff "providing a full general release." Settlement Agreement ¶ 1.31; see also Settlement Agreement ¶ 6.4. The court stated that an enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action, and, in some circumstances, to recognize their willingness to act as a private attorney general, and that the court is unlikely to approve a settlement that provides an enhancement award in exchange for a general release. In the amendment to the settlement agreement, the parties have removed the references to plaintiff's enhancement award being in part in exchange for plaintiff "providing a full general release." Amendment ¶¶ 1.31, 6.4. Plaintiff still seeks an enhancement award of \$7,500. What compensation will plaintiff receive for the "full general release"? 8. In the February 19, 2026 order, the court stated that the "Class Release" in paragraph 10.1 of the settlement agreement was overbroad, and that the release of the class members' claims must be fairly tailored to the claims that
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		were or reasonably could have been asserted in the lawsuit based on the facts alleged in the operative complaint. The "Class Release" in the amendment remains overbroad and should be revised in accordance with the February 19, 2026 order. 9. The "Released Parties" provision in paragraph 10.1 of the amendment to the settlement agreement appears to be missing a word before "principals," and there is a stray " , " in the same sentence. 10. Paragraph 1.20 of the amendment provides 60 days for "workweek/pay period disputes," but paragraphs 8.7 and 8.8 (and the dispute form) refer only to workweek disputes. This inconsistency should be resolved, and the notice and the workweek/pay period form should also be revised as necessary. 11. In the February 19, 2026 order, the court stated that while the court will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. The court states that plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. Plaintiff's counsel has not identified any unique circumstances in the supplemental filing. The court preliminarily finds attorneys' fees not to exceed 30% of the gross settlement amount (i.e., not to exceed \$232,500) reasonable for this case. 12. Plaintiff's counsel costs include charges for legal research, which are not recoverable and should be removed. In addition, at final approval, plaintiff should submit invoices substantiating the expert and mediation charges. <u>As to the notice:</u> 13. The notice should be revised consistent with the above. 14. The court (i.e., Los Angeles County Superior Court) identified in the second paragraph on page 1 is incorrect. 15. The phrase "not exceed" in section II.B should be replaced with "not to exceed." 16. The settlement administrator states that its charges will not exceed \$9,950. Lawrence Decl. (ROA 105) ¶ 22 & Ex. B. The notice (§ II.F) should be revised accordingly. 17. Sections II.J (last sentence) and III.D have not been revised to incorporate pay periods for calculation of individual PAGA payments. 18. Sections III.B and III.D should state the methods for submitting objections and disputes, respectively.
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		19. The second-to-last sentence of section III.B should be revised to remove the stray " ; " and stray "(c)." 20. The phrase "Central Justice Center" should be removed in section V. 21. Plaintiff did not submit a revised exclusion form formatted to fit on one page. Exhibit 8 to the Supplemental Perlman Declaration is a second copy of the Settlement Allocation Form. 22. The objection form should include the settlement administrator's email address and fax number. <u>As to the proposed order (ROA 94):</u> 23. The proposed order should be revised consistent with the above. 24. The settlement agreement, any amendment(s) thereto, and the notice packet should be attached as exhibits to the proposed order. 25. The proposed order should identify the parties (plaintiff and defendant) by name. 26. The proposed order should identify the PAGA Group Members and the PAGA period. 27. The proposed order should include the following sentence: "The court finds on a preliminary basis that the settlement is fair, adequate, and reasonable, and in the best interests of the class members and the aggrieved employees." 28. The proposed order should state the gross settlement amount, the not-to-exceed amounts of attorneys' fees, litigation costs, plaintiff's enhancement award and settlement administration fees, and the PAGA penalties allocation (including the specific 75% / 25% allocations). 29. The proposed order should include a provision stating: "The court orders the parties and the settlement administrator to carry out their duties and obligations in accordance with terms of the settlement agreement." 30. Paragraph 6 should be removed. 31. In paragraph 8 of the proposed order, the word "preliminarily" should be inserted after "hereby" and before "appointed." 32. The proposed order should include a provision stating that the court retains jurisdiction to enforce the settlement pursuant to Civil Procedure Code section 664.6. 33. In paragraph 11, "plaintiffs" should be singular. 34. The parties should propose a date for the final approval hearing. The court holds final approval hearings on
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		Thursdays at 2:00 p.m. The motion for final approval should be filed and served at least 16 court days before the final approval hearing. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>October 15, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See <i>also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
2	Crawley, et al. v. Rise Energy, LLC, et al. 2023-01336866	<u>Plaintiffs' Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for preliminary approval of an \$875,000 class action and PAGA settlement. The court has the following questions and comments: 1. In the August 21, 2025 order (ROA 111), the court stated: <u>"If required, an amendment to the settlement agreement is directed, rather than 'amended settlement agreement,' to streamline the court's review."</u> 8/21/25 Order (ROA 111) (underlining in original). For unknown reasons, the parties prepared and submitted an amended settlement agreement. 2. Were the supplemental papers served on the LWDA? The proof of service (ROA 123) does not include the LWDA. Plaintiffs must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiffs served the documents, and how service was effected. <u>As to the settlement:</u> 3. In the August 21, 2025 order (ROA 111), the court stated that plaintiffs should provide each named plaintiff's anticipated total amount to be received (including for any individual claims and excluding any enhancement payment). Do any of the named plaintiffs anticipate receiving any compensation for any individual claims? 4. In the August 21, 2025 order, the court stated that the "Released Parties" provision in paragraph 1.41 of the settlement agreement was overbroad, as it included several